About Health Facilities' State Enforcement Actions

The "Health Facilities' State Enforcement Actions" File is Now Available on the California Health and Human Services Agency's (CHHS) Open Data Portal

The California Department of Public Health (CDPH), has posted a file of all state enforcement actions (citations and administrative penalties) issued to health facilities between July 1, 1998 - December 31, 2017, to the CHHS Open Data Portal at https://data.chhs.ca.gov/. The file includes variables that describe the enforcement actions, such as the type of citation/penalty, monetary penalty amount, violation date, whether or not the enforcement action was appealed or the citation/penalty assessments were changed, and variables that describe the facility to which CDPH had issued the citation/penalty. This information enables stakeholders to assess California health facilities' non-compliance and quality issues. By making this information available, quality issues can be identified and addressed.

Regulation and Enforcement of California Health Facilities

CDPH, through the Center for Health Care Quality (CHCQ), Licensing & Certification Program, is responsible for regulatory oversight of licensed health care facilities and health care professionals, to assess the safety, effectiveness, and quality of health care for all Californians. CHCQ fulfills this role by conducting periodic inspections and complaint investigations of health care facilities to determine compliance with federal and state laws and regulations. CHCQ licenses and certifies over 10,000 health care facilities and agencies in California, in more than 30 different licensure and certification categories.

Facilities that are found to be in violation of licensure/certification requirements are cited for the deficient practice(s) and may be subject to fines or other enforcement actions. A regulatory violation is also referred to as a deficiency or deficient practice. Deficiencies range in scope and severity from isolated violations with no harm to patient/residents, to widespread violations that cause injuries or put residents in immediate jeopardy of harm or death. In many cases, facilities correct less serious deficiencies by implementing a written plan of correction without incurring fines or other penalties.

For more serious violations, CDPH may impose a fine, appoint a temporary manager or receiver, suspend or revoke the nursing home's license, or use other remedies for violations as provided by state or federal law. One method that CDPH uses to promote compliance with state regulations is the issuance of a state enforcement action (a citation or an administrative penalty) with monetary consequences. These actions vary by facility type.

About State Enforcement Actions: Long-Term Care Facilities

What types of state enforcement actions are issued only to long-term care facilities?

CDPH is authorized to issue "prompt and effective civil sanctions" to long-term care facilities by the "Long-Term Care, Health, Safety, and Security Act of 1973", commencing at Health and Safety Code (HSC) section 1417.1. Implementing regulations are found in the California Code of Regulations (CCR) Title 22, commencing at section 72001. Any long-term care facility may receive a citation.

CDPH is also authorized to issue administrative penalties to free-standing skilled nursing facilities (SNFs) for violations of staffing standards. The staffing standard was 3.2 nursing hours per patient day (NHPPD) between January 1, 2000 - June 30, 2018; and 3.5 direct care hours per patient day (DCHPPD) thereafter (HSC sections 1276.5 and 1276.65(B)). This standard is the total number of nursing hours performed by direct caregivers divided by the average patient census for the facility per patient day. CDPH audits 24 days/fiscal year/facility to determine staffing compliance. (See Appendix 1, Long-Term Care Facilities - Citations/Penalties.)

What is the process for CDPH to issue a citation?

CDPH conducts a thorough investigation of the event using principals of documentation that include record reviews, direct observations and interviews. The CDPH district office manager reviews the investigation report. If the manager concurs the violation rises to the level of a class AA violation, the findings are submitted to the Office of Legal Services and the Field Operations Branch Chief for review and approval. If all reviewers concur with the findings, the district office issues the citation to the facility.

What types/classifications of state citations can be issued?

The table below displays the state citation "classes" as well as the criteria needed to classify the level of the citation. The most serious is a class AA citation, a violation that CDPH has "determined to have been a direct proximate cause of death of a patient or resident of a long term care facility." To enforce a class AA citation, CDPH must prove the violation was a direct proximate cause of death and the death resulted from an occurrence of a nature that the regulation was designed to prevent (HSC section 1424(c)).

CALIFORNIA CITATION CLASS CRITERIA		
Class	**Facility Type**	**Definition**
AA	LTC	• Meets the definition of a Class "A" violation, and • Was a direct proximate cause of patient death.
A	LTC	• Imminent danger of death or serious harm to patients, or • A substantial probability of death or serious physical harm to patients.
B	LTC	• Has a direct or immediate relationship to patient health, safety, or security. • Can include emotional and financial elements.
Patient Rights B	LTC	• Any violation of patient's rights as described in Title 22 of the California Code of Regulations. • A patient's rights violation produces a situation likely to cause significant humiliation, indignity, anxiety, or other emotional trauma, but is not serious enough to be a Class "A," unless CDPH determines such a violation meets the criteria of a Class "A".
Abuse Reporting B	LTC	• Failure of the facility to report incidents of alleged or suspected abuse of a facility resident. • Must be reported to CDPH immediately or within 24 hours of the incident. • Failure of the facility to meet the requirements in HSC section 1418.91 results in a Class "B" citation.
Financial Occurrence Reporting B	SNF	• Failure of the licensee to notify CDPH of financial occurrences as described in HSC section 1421.1. • CDPH must be notified within 24 hours of occurrence. • Notification to CDPH may be in written form if it is provided by FAX or overnight mail, or by telephone with a written confirmation within five calendar days.
Posting Notice of Imposed Remedies B	LTC	• Facility failure to post notice of remedies imposed for violation(s) of state or federal requirements as described in HSC section 417.15 will result in a Class "B" citation.

CALIFORNIA CITATION CLASS CRITERIA		
Class	**Facility Type**	**Definition**
Written Notice of Imposed Remedies B	SNF	• Written notification of imposed remedies must be given to the following: each resident, each resident's responsible party and legal representative, and all applicants for admission to the facility. • Facility failure to provide written notice of imposed remedies as described in HSC section 1429.1 will result in a Class "B" citation.
Posting of Ombudsman Information A & B	SNF	CDPH shall assess a civil penalty of $100 for each day the facility fails to post the Ombudsman information poster (pursuant to section 9718 of the Welfare and Institutions Code). • Issued and enforced in the same manner as a Class "B" citation when the penalty is assessed at less than $2,000. • Issued and enforced in the same manner as a Class "A" citation when the assessed penalty is equal to or in excess of $2,000.
Willful Material Falsification (WMF)	LTC	Any entry in the health care record that falsely reflects the condition/care/services provided to the resident, such as: • Administration of medication or treatments ordered. • Services pertaining to the prevention or treatment of pressure sores or contractures. • Tests and measurements of vital signs. • Notations of fluid input and output.
Retaliation/ Discrimination	LTC	Prohibits licensee from discriminating or retaliating against: • Patient • Employee • Any other person who has presented a grievance/complaint, or has initiated/cooperated in any investigation/preceding of any governmental entity relating to care/services/conditions.
C (written as state deficiencies)	LTC	The violation at the time of the occurrence has minimal (remote) relationship to patient health, safety or security.
Willful Material Omission (WMO)	LTC	• Willful failure to record any untoward event which has affected the health, safety, or security of a patient, and • Was omitted with the knowledge that the record falsely reflects the condition of the patient or care or services provided.
Family Council B	SNF	• Facility may not prohibit the formation of a family council. • Facility may not limit the function of the family council.

CALIFORNIA CITATION CLASS CRITERIA		
Class	**Facility Type**	**Definition**
		• Failure of the facility to meet the requirements of HSC section 1418.4 results in a Class "B" citation.

Does a facility risk losing its license if it receives a certain number of class AA citations within a certain period of time?

Yes. For a second or subsequent class AA citation within a 24-month period, CDPH shall commence action to suspend or revoke the facility's license (HSC section 1424.5(a)(1)).

About State Enforcement Actions: Hospital Penalties

What types of state enforcement actions are issued only to hospitals?

CDPH issues administrative penalties to general acute care hospitals, acute psychiatric hospitals, and special hospitals under authority granted by HSC section 1280.3 (Senate Bill 1312, Statutes of 2006, Chapter 895), which became effective on January 1, 2007. CDPH may also issue a civil penalty for the facility's failure to report the adverse event to CDPH within the mandated timeframe, under authority granted by HSC section 1280.4. An administrative penalty (AP) is a monetary penalty issued for a facility's violation of the requirements of licensure that impacts, or is likely to impact, the health and safety of patients. CDPH issues an immediate jeopardy administrative penalty when the hospital's noncompliance with one or more requirements of licensure has caused, or is likely to cause, serious injury or death to the patient. (See Appendix 2, California Hospitals – Administrative Penalties.)

What is the process for CDPH to issue an administrative penalty?

The recommendation to issue an administrative penalty is made at the CHCQ district office level by the investigating surveyor and their supervisor after review of the investigation and approval of the determination to issue the administrative penalty. These proposed/recommended penalties are sent to Office of Legal Services and the CHCQ Deputy Director for approval and issuance. The CHCQ Deputy Director makes the final decision.

Does a hospital risk losing its license if it receives a certain number of administrative penalties within a certain period of time?

No, hospitals are not at risk of termination based on the number of administrative penalties within a given time period. CDPH's decision to terminate will take into account the severity of the violations that occurred, the ability to implement corrections and their assurance, through demonstration and CDPH's assessment that such occurrences will not happen in the future.

About State Enforcement Actions: Breach of Confidential Patient Medical Information

Health facilities licensed by CDPH must safeguard confidential patient information. CDPH issues administrative penalties to facilities that breach patients' confidential medical information under HSC section 1280.15. (See Appendix 3, California Medical Breach Penalties.)

Citation/Administrative Penalty Fines

What is the fine for a LTC facility citation?

CDPH issues "AA" level citations, which carry a penalty of $25,000 to $100,000, when it determines that a facility's violation was a direct proximate cause of death of a patient or resident. The state may issue "A" or "B" level citations to long-term care facilities or providers for lesser violations. Class "A" citations carry fines of $2,000 to $20,000, and Class "B" citations carry fines of $100 to $2,000. Facilities that do not contest the level of the citation or the amount of the fine may, within 30 days of the citation issuance, pay 65 percent of the assessed fine (HSC section 1424.5(b)).

What is the fine for a SNF for a staffing standard administrative penalty?

Staffing standard administrative penalty fines depend on the number of days that the facility fails to meet the staffing requirement: the penalty amount is $15,000 if the facility is two - 11 days non-compliant with the staffing standard and $30,000 if the facility is 12 - 24 days non-compliant. If a facility is one day non-compliant, CDPH does not issue the facility a penalty, however, the facility becomes ineligible to

participate in the California Department of Health Care Services' Quality and Accountability Supplemental Payment (QASP) Program, a program which encourages and incentivizes SNFs to implement quality improvements.

What is the fine for a hospital administrative penalty?

Penalty amounts range from $25,000 for incidents occurring prior to 2009 to $125,000. A penalty can be issued in an amount of up to $75,000 for a first deficiency constituting an immediate jeopardy (IJ) to the health and safety of a patient, up to $100,000 for the second subsequent IJ deficiency, and up to $125,000 for a third and every subsequent IJ deficiency (HSC section 1280.3). APs for non-IJ licensing deficiencies can be assessed in an amount up to $25,000.

What is the fine for a breach of confidential patient medical information?

CDPH may assess a penalty of $25,000 per patient for patients whose medical information was accessed, used, or disclosed without authorization; and up to $17,500 per subsequent occurrence of unlawful or unauthorized access, use, or disclosure of that patient's medical information. If an incident is not reported to CDPH and to the affected patient or his/her representative within 15 business days of its detection, the health facility may receive a failure to report fine of $100 per day after the initial 15-day reporting period.

What happens to the citation/administrative penalty fine money?

CDPH deposits all money collected from citations in the Health Facilities Citation Penalties Account. The money is used for quality assurance initiatives that directly improve the health care and services offered to long term care facility residents, pursuant to HSC section 1417.2. CDPH deposits money collected from administrative penalties in a fund established pursuant to HSC section 1266.9.

Can Facilities Appeal State Enforcement Actions?

Facilities have the right to appeal survey findings and state enforcement action decisions. On appeal, CDPH's decision may be upheld or reversed, or a settlement may be reached in which fines are reduced. Long-term care facilities can appeal citations directly to court or to an administrative hearing unit. The outcome of the citation and collection of any fines assessed are not final until all appeals have been exhausted (HSC section 1428(b)). Hospitals can appeal administrative penalties by requesting a hearing within 10 calendar days of notification. If the penalty is upheld, the penalties are to be paid following appeal.

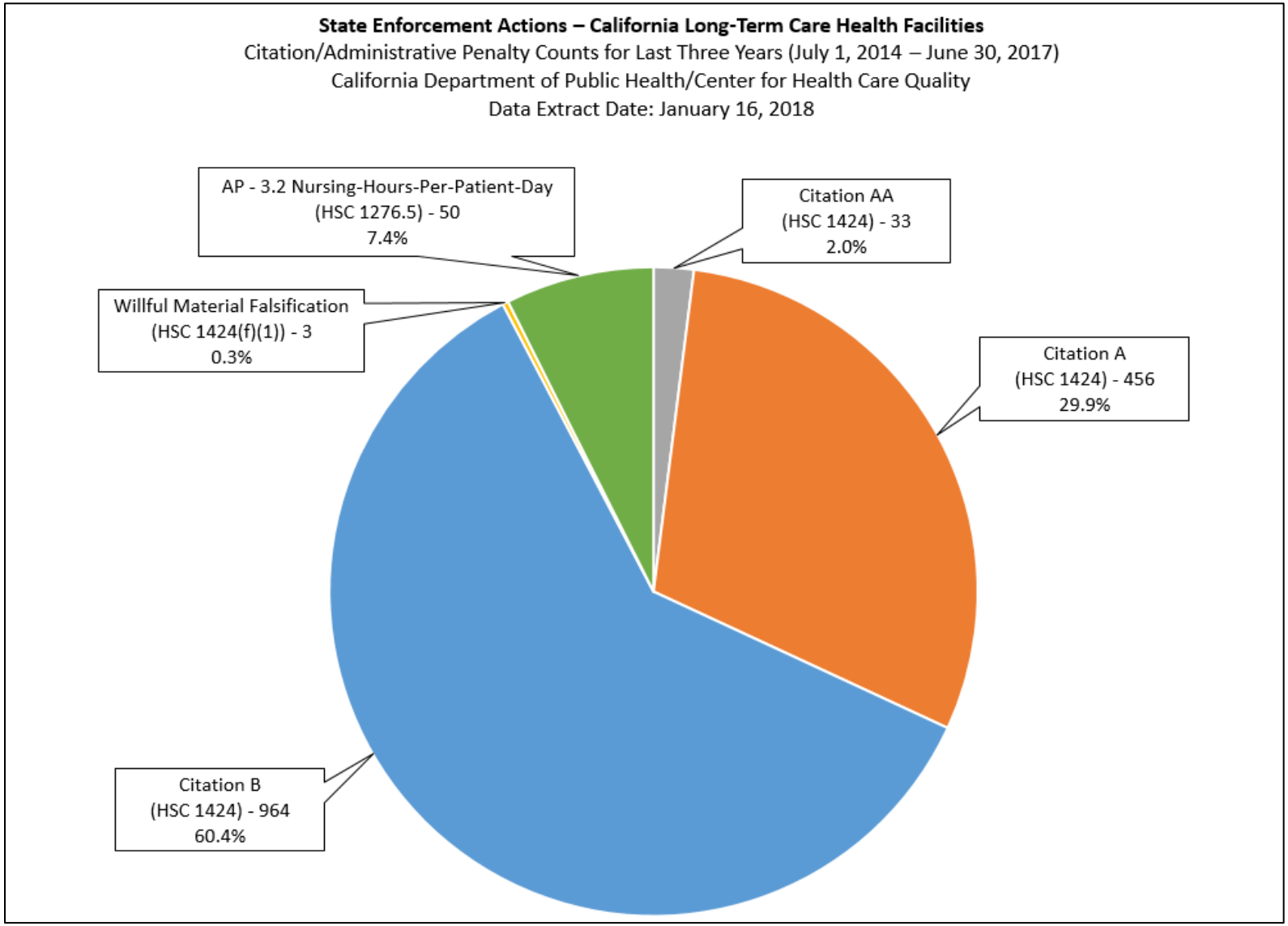
What is the Difference between a Survey Inspection Report and a State Enforcement Action Report?

CDPH generates an inspection report for every facility survey that is completed (CMS or State Form 2567, "Statement of Deficiencies and Plan of Correction"). The inspection report lists all violations cited during the course of the survey, and the evidence that supports the determination that the violation occurred.

A survey may be associated with a state enforcement action, if one or more of the survey violations rises to a level that meets state regulatory standards. When CDPH issues a state enforcement action, they generate a report which summarizes the investigation and specifies the violation(s) upon which the enforcement action was based. Typically, a state enforcement action is based on a subset of the violations cited during a survey. A report summarizing the justification for a citation is called a "Section 1424 Notice". A report summarizing the justification for an administrative penalty is called a "State – 2567, Statement of Deficiencies and Plan of Correction".

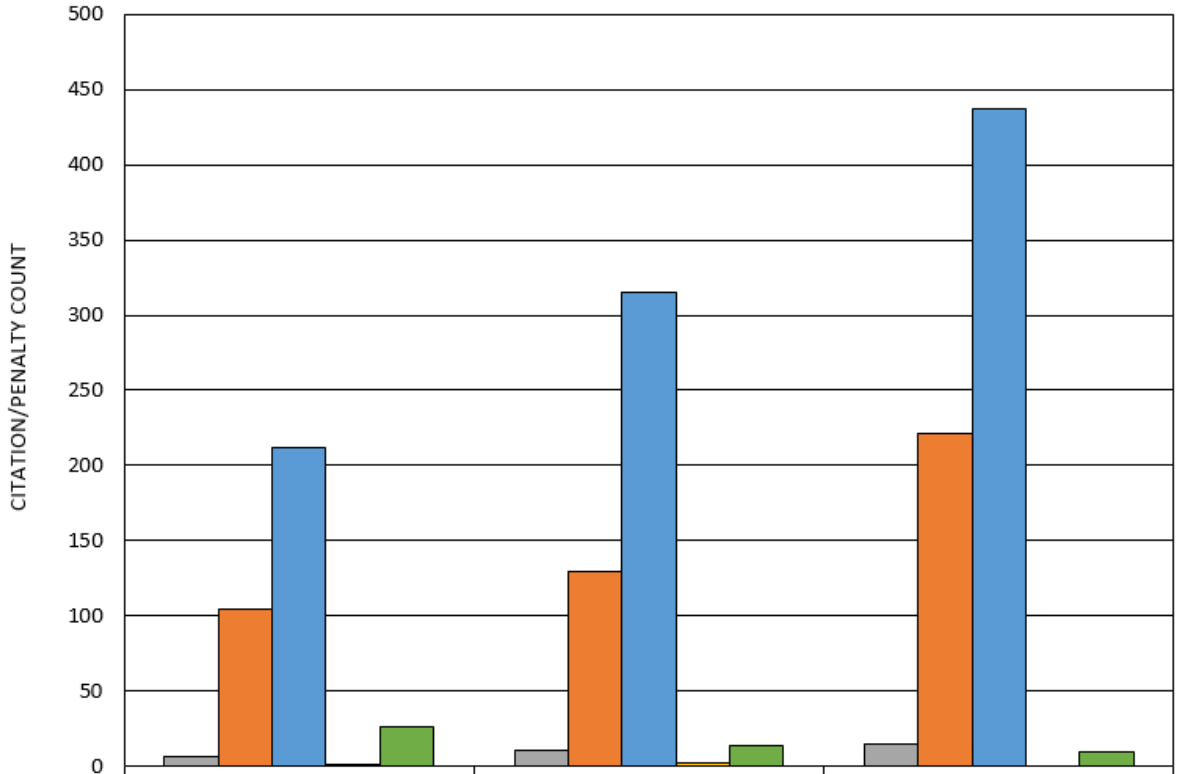
Complete enforcement action reports and nursing home plans of correction, edited to ensure patient confidentiality, are available at each nursing home and at the CDPH district office. Recent enforcement action reports are on-line at: http://hfcis.cdph.ca.gov/EnforcementPenalty/EnforcementPenalty.aspx.
Skilled nursing facility inspection and enforcement reports are also posted at: https://www.cdph.ca.gov/Programs/CHCQ/LCP/CalHealthFind/Pages/Home.aspx; and federal inspection reports are at www.medicare.gov/NHCompare/home.asp.

Appendix 1: California Long-Term Care Facilities – Citations/Administrative Penalties (July 1, 2014 – June 30, 2017)



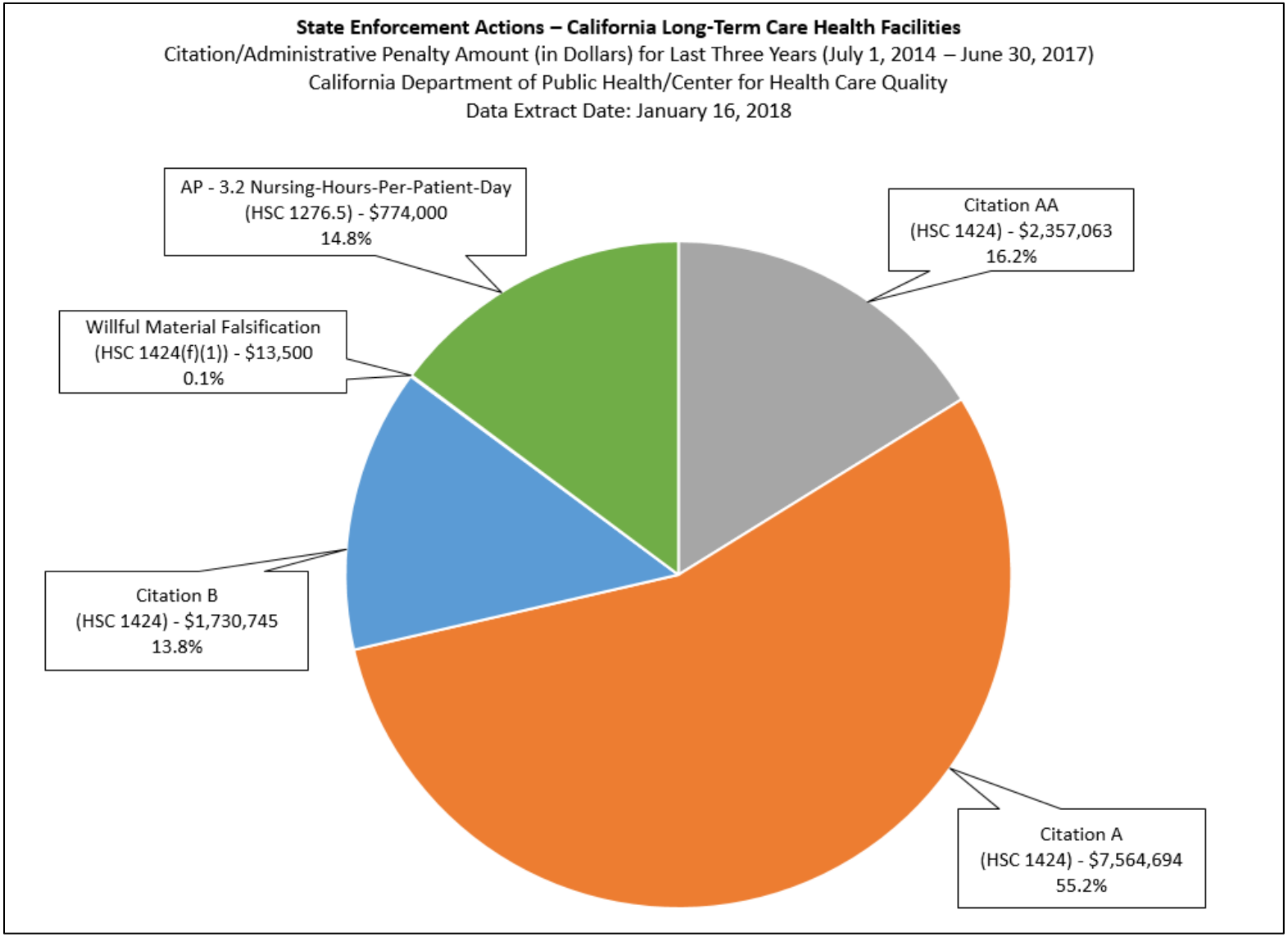
Appendix 1: California Long-Term Care Facilities - Citations/Administrative Penalties (July 1, 2014 – June 30, 2017)

State Enforcement Actions – California Long-Term Care Health Facilities
Citation/Administrative Penalty Counts for Last Three Years (July 1, 2014 – June 30, 2017)
California Department of Public Health/Center for Health Care Quality
Data Extract Date: January 16, 2018



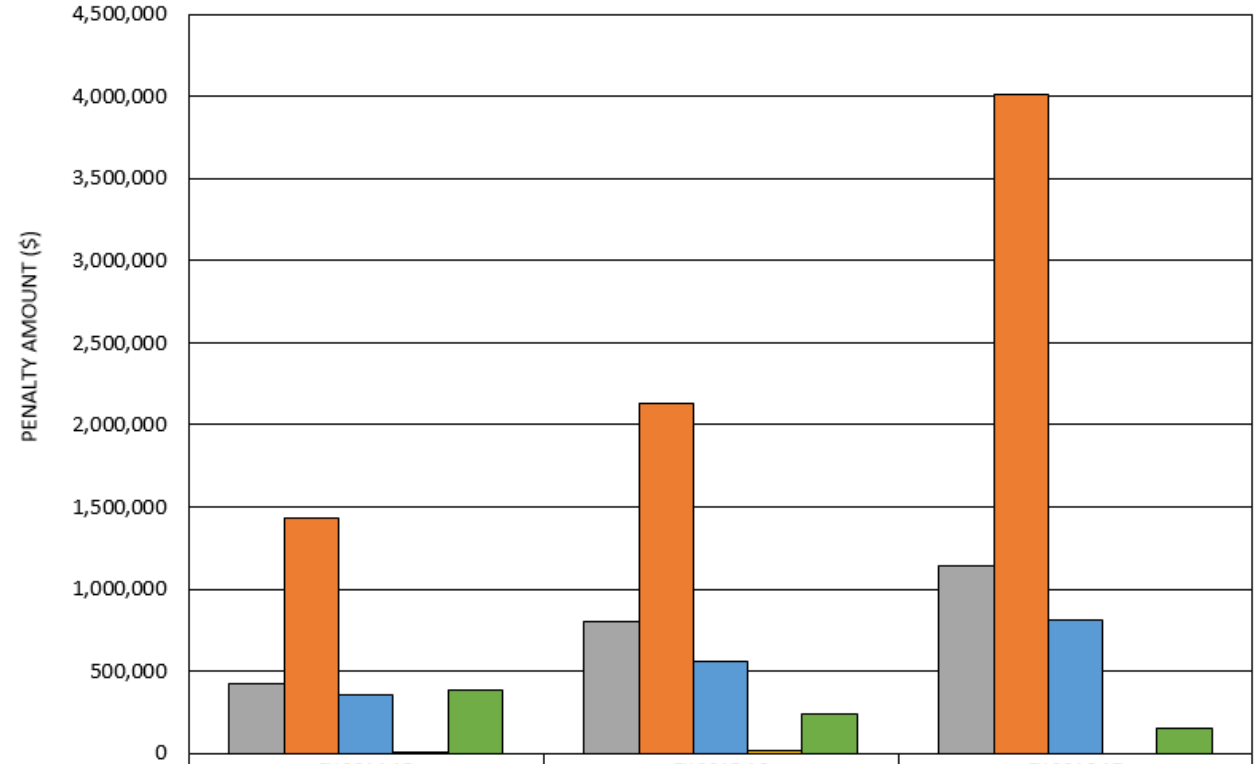
	FY 2014-15	FY 2015-16	FY 2016-17
Citation AA (HSC 1424)	7	11	15
Citation A (HSC 1424)	105	130	221
Citation B (HSC 1424)	212	315	437
Willful Material Falsification (HSC 1424(f)(1))	1	2	0
AP - 3.2 Nursing-Hours-Per-Patient-Day (HSC 1276.5)	26	14	10

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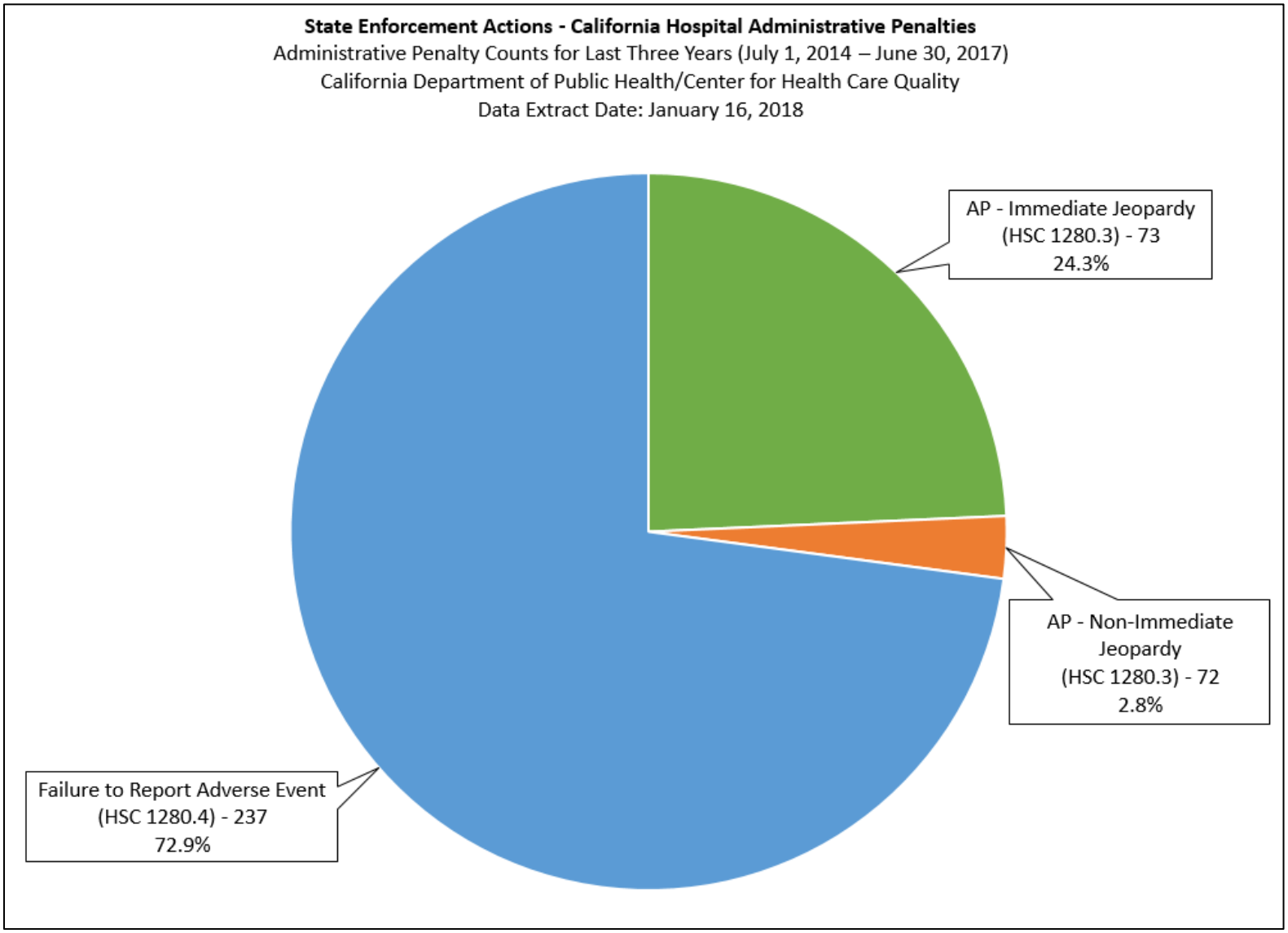
Appendix 1: California Long-Term Care Facilities - Citations/Administrative Penalties (July 1, 2014 – June 30, 2017)

State Enforcement Actions – California Long-Term Care Health Facilities
Citation/Administrative Penalty Amount (in Dollars) for Last Three Years (July 1, 2014 – June 30, 2017)
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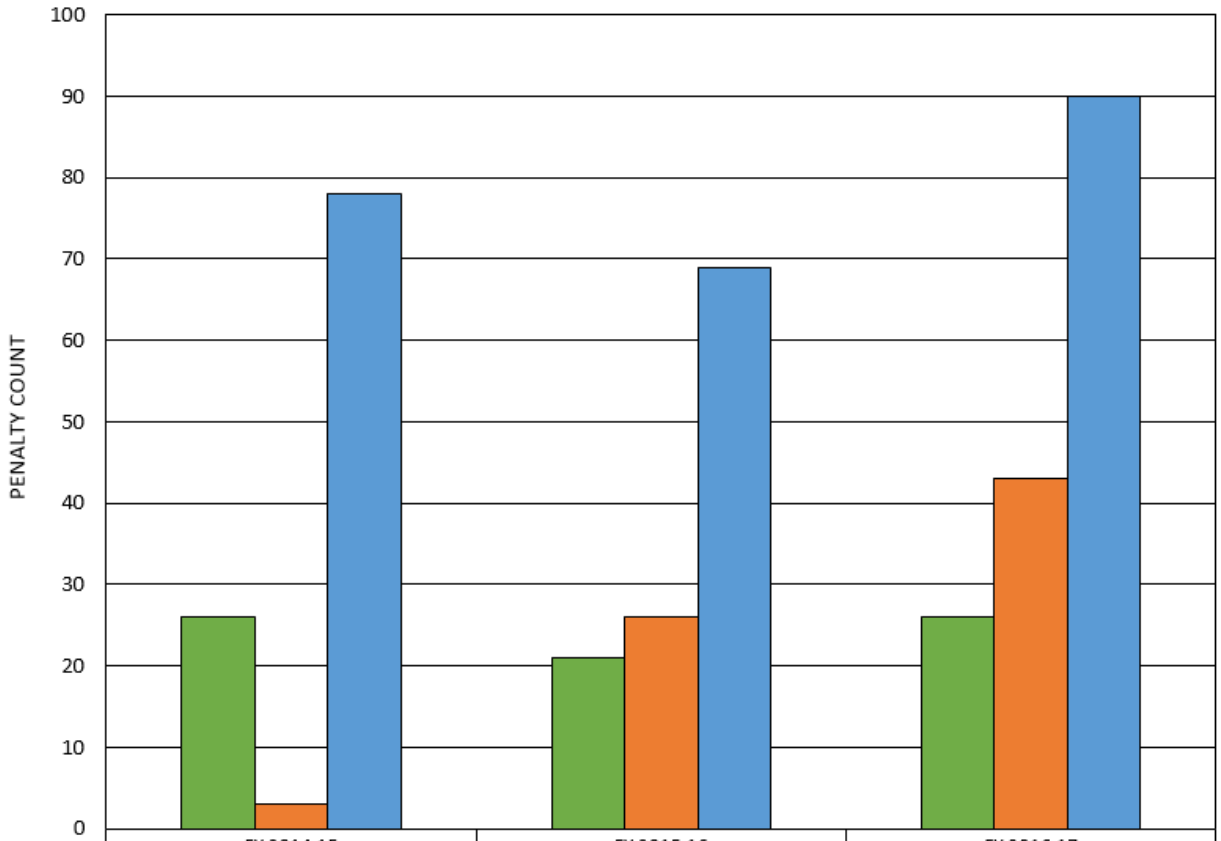
	FY 2014-15	FY 2015-16	FY 2016-17
Citation AA (HSC 1424)	419,900	797,163	1,140,000
Citation A (HSC 1424)	1,432,350	2,125,492	4,006,852
Citation B (HSC 1424)	356,900	560,965	812,880
Willful Material Falsification (HSC 1424(f)(1))	1,500	12,000	0
AP - 3.2 Nursing-Hours-Per-Patient-Day (HSC 1276.5)	384,000	240,000	150,000

Appendix 2: California Hospitals – Administrative Penalties (July 1, 2014 – June 30, 2017)



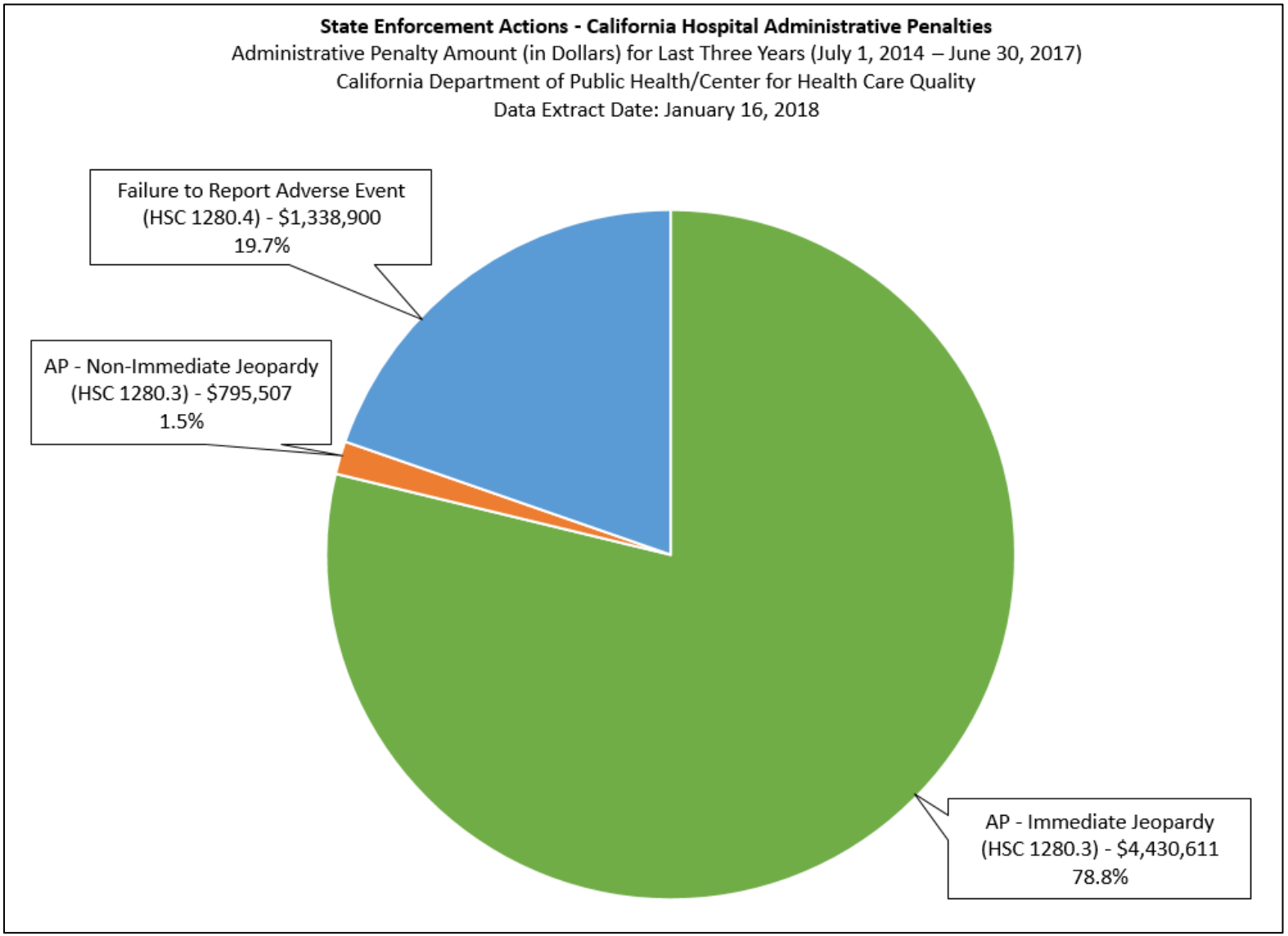
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Administrative Penalty Counts for Last Three Years (July 1, 2014 – June 30, 2017)
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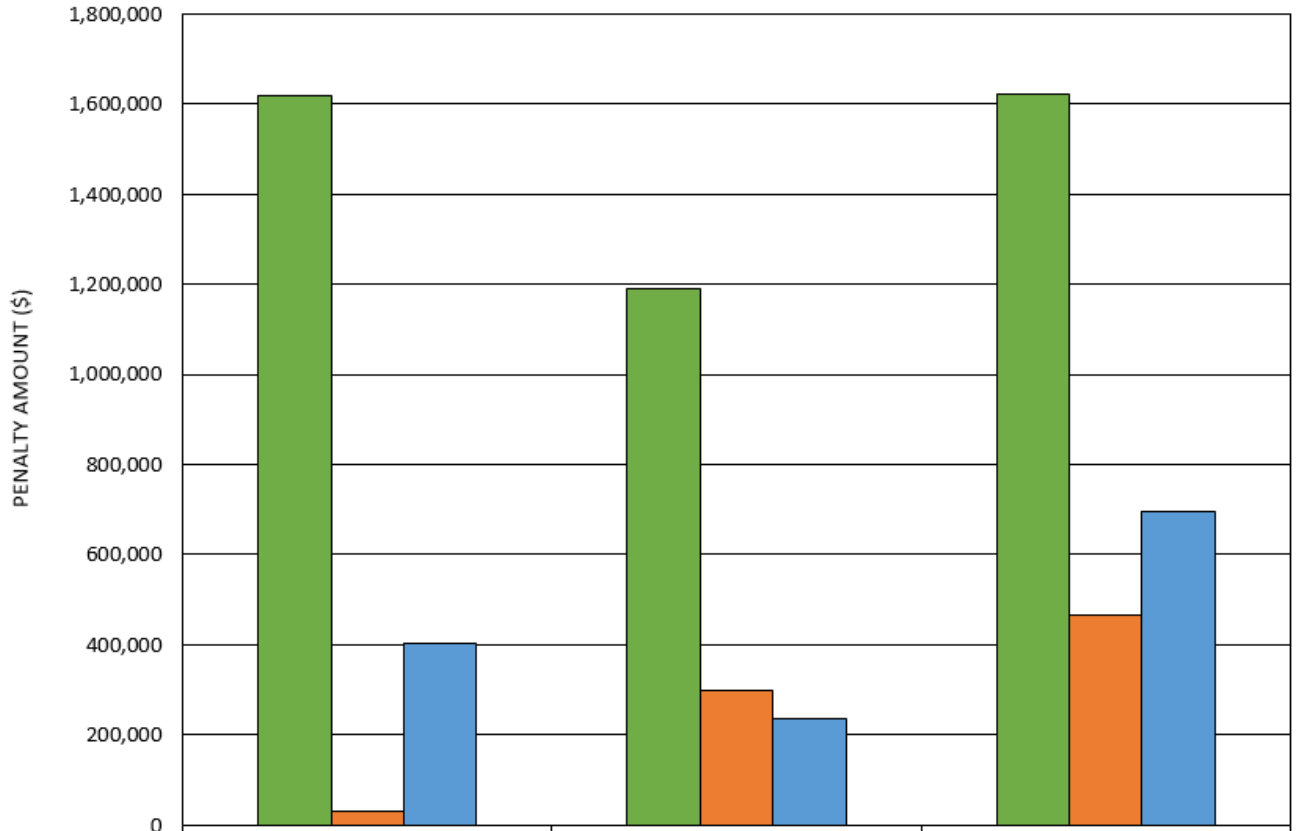
	FY 2014-15	FY 2015-16	FY 2016-17
AP - Immediate Jeopardy (HSC 1280.3)	26	21	26
AP - Non-Immediate Jeopardy (HSC 1280.3)	3	26	43
Failure to Report Adverse Event (HSC 1280.4)	78	69	90

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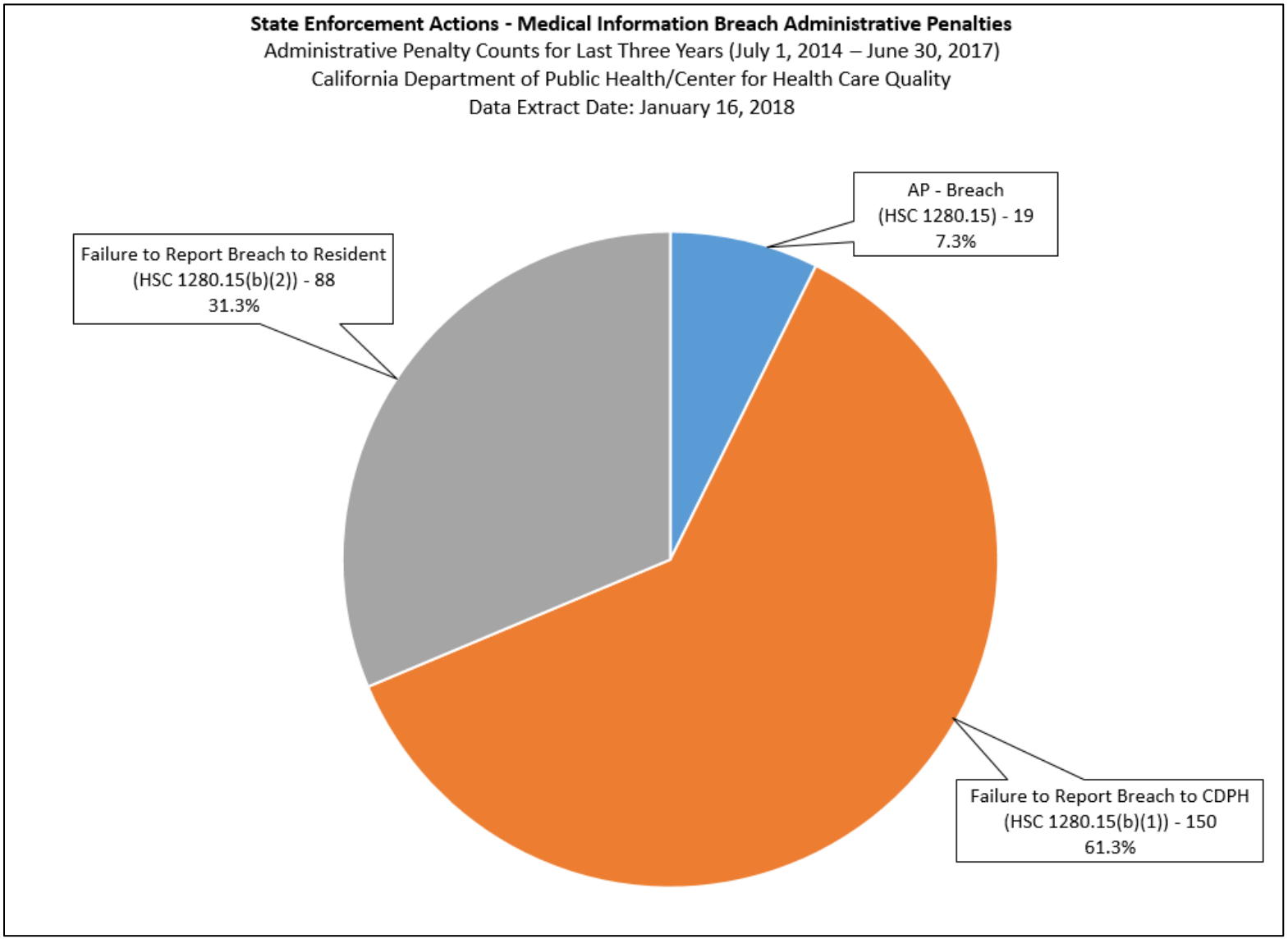
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State Enforcement Actions - California Hospital Administrative Penalties
Administrative Penalty Amount (in Dollars) for Last Three Years (July 1, 2014 – June 30, 2017)
California Department of Public Health/Center for Health Care Quality
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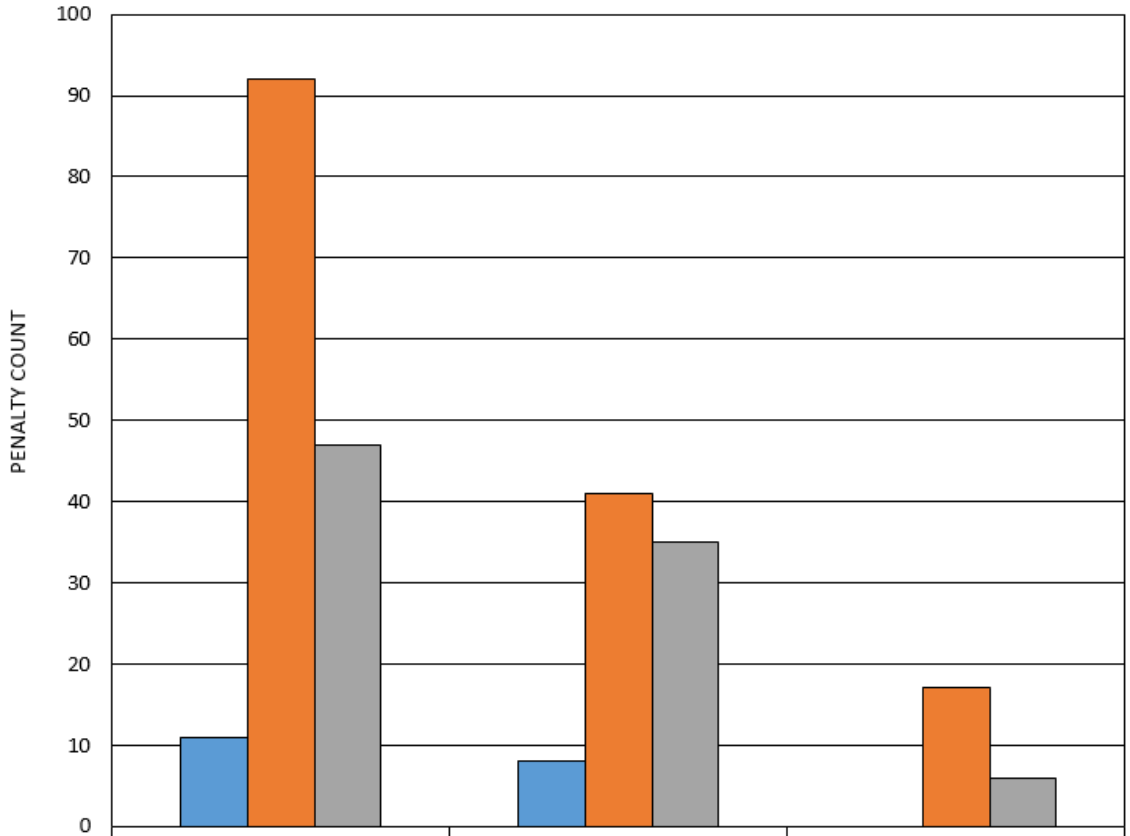
	FY 2014-15	FY 2015-16	FY 2016-17
AP - Immediate Jeopardy (HSC 1280.3)	1,617,925	1,191,038	1,621,648
AP - Non-Immediate Jeopardy (HSC 1280.3)	31,767	299,155	464,585
Failure to Report Adverse Event (HSC 1280.4)	404,200	237,600	697,100

Appendix 3: California Medical Information Breach Administrative Penalties (July 1, 2014 – June 30, 2017)



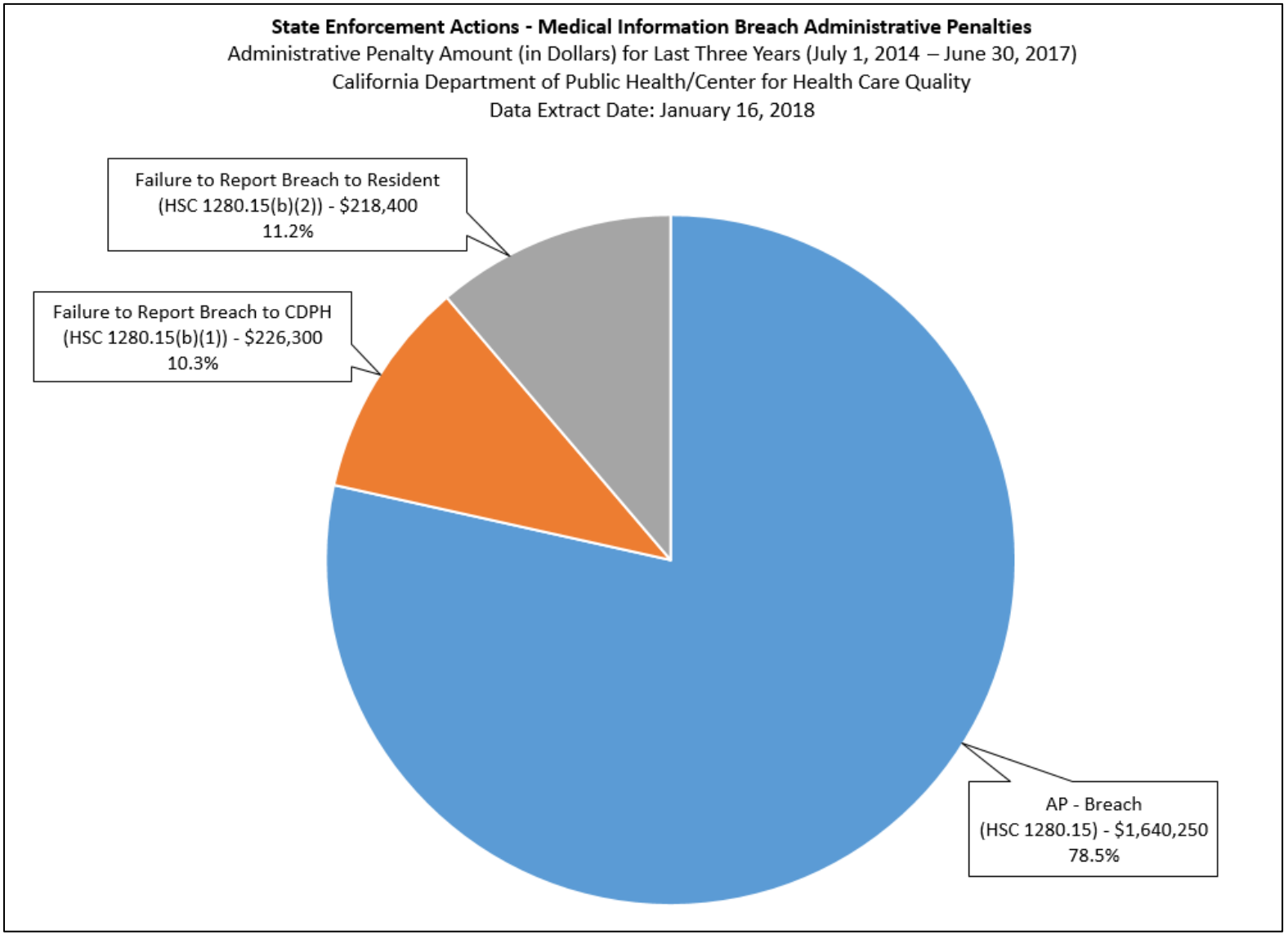
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Administrative Penalty Counts for Last Three Years (July 1, 2014 – June 30, 2017)
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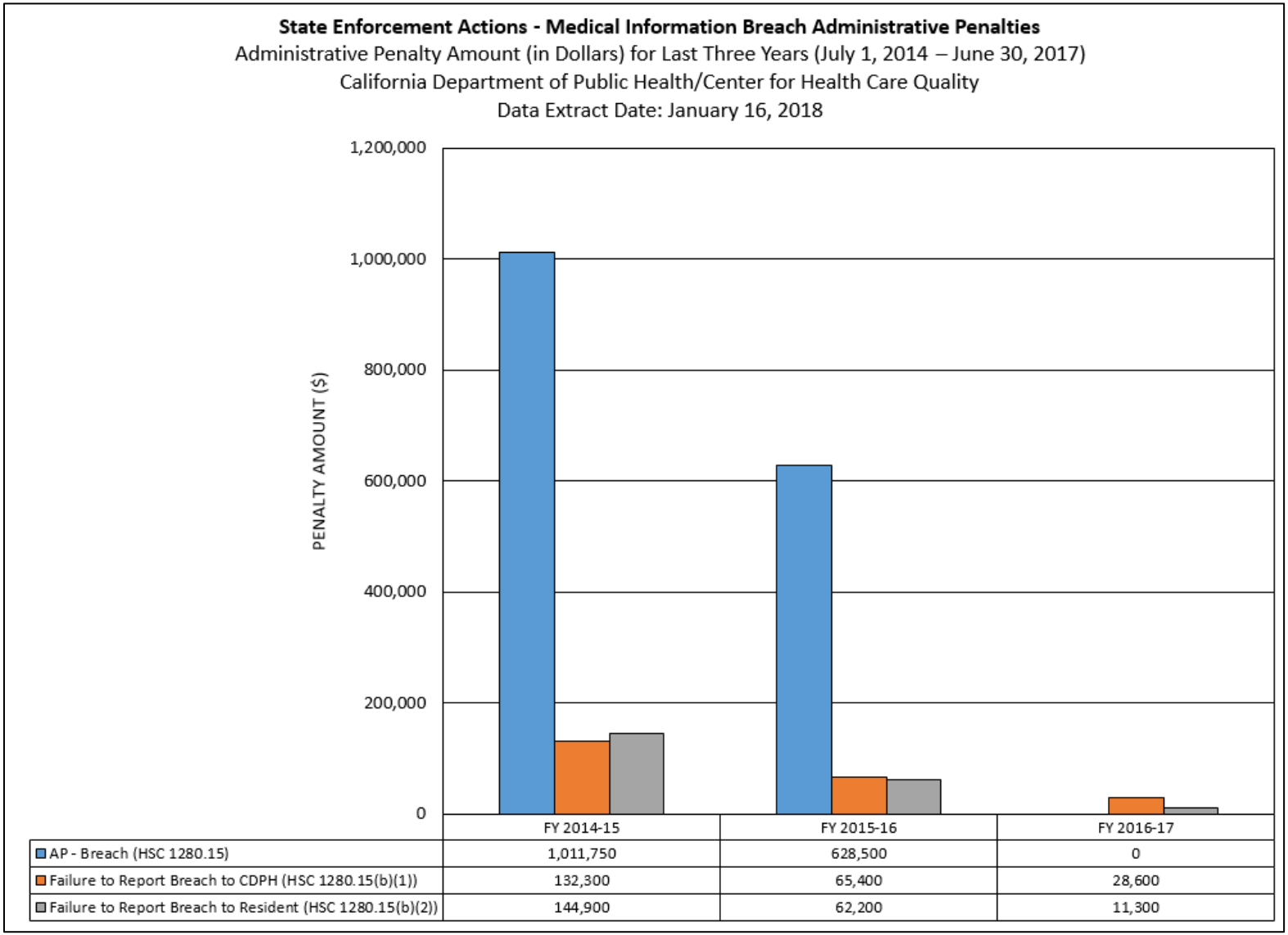
	FY 2014-15	FY 2015-16	FY 2016-17
AP - Breach (HSC 1280.15)	11	8	0
Failure to Report Breach to CDPH (HSC 1280.15(b)(1))	92	41	17
Failure to Report Breach to Resident (HSC 1280.15(b)(2))	47	35	6

Appendix 3: California Medical Information Breach Administrative Penalties (July 1, 2014 – June 30, 2017)



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	FY 2014-15	FY 2015-16	FY 2016-17
AP - Breach (HSC 1280.15)	1,011,750	628,500	0
Failure to Report Breach to CDPH (HSC 1280.15(b)(1))	132,300	65,400	28,600
Failure to Report Breach to Resident (HSC 1280.15(b)(2))	144,900	62,200	11,300